

ground that such bill as amended does not, even if the amendment be true, entitle the plaintiff thereto.

On all motions to obtain or dissolve a special injunction, as well as to dissolve or extend the common injunction, affidavits may be used either to support or contradict the answer.

LXXIII.

Affidavit to support or contradict the answer.

In case an injunction to stay proceedings at law be prayed by the bill, and shall either not be allowed, or, having been obtained, shall have been dissolved upon the merits stated in the answer, and the plaintiff shall afterwards amend his bill, and the defendant shall not answer, or demur to the amended bill, within eight days after service of the subpoena to answer, the plaintiff shall be entitled to move for an injunction upon affidavit of the truth of the amendments.

LXXIV.

Amendment when Injunction not granted.

The above Orders 71 and 72 are copies verbatim from the 59th and 60th English Orders, of 1845, with the exception, that eight days are named in the English Order instead of fourteen as in the above 31st Order.

The above 74th Order is copied from the 36th Article of the 16th English Order of 1845.

If within fourteen days from appearance the defendant demurs, or answers and demurs, the plaintiff, it seems, is not entitled to the Common Injunction under the 71st Order. See *Cousins vs. Smith*, 13 Vesey 164.

The 73rd Order is not from any English Order. The necessity for it arises from the new practice of permitting answers to be short, and not compelling a full discovery as formerly.